

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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KARINA GARCIA and KEILA MARTINEZ ,

Plaintiffs, **SUMMONS**

-against-

Index No.:

POLICE OFFICER MARIELEN DERASMO, Shield No.
8644 and SERGEANT RICHARD HEWITT,The Basis of Venue is:
Location of Incident

Defendants.

Plaintiffs designate Bronx
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Verified Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 21, 2018

Yours, etc.

/s/JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiffs
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690TO: POLICE OFFICER MARIELEN DERASMO, Shield No. 8644, 52nd Precinct, 3016
Webster Ave, Bronx, NY 10467
SERGEANT RICHARD HEWITT, 52nd Precinct, 3016 Webster Ave, Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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KARINA GARCIA and KEILA MARTINEZ,

Plaintiffs,

-against-

POLICE OFFICER MARIELEN DERASMO, Shield No.
8644 and SERGEANT RICHARD HEWITT,

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiffs KARINA GARCIA and KEILA MARTINEZ, by their attorneys, Jacobs & Hazan, LLP, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. On October 21, 2015, at approximately 1:30 p.m., plaintiffs were lawfully sitting on a park bench in the vicinity of 309 East Mosholu Parkway North, Bronx, New York, when the individually named New York City Police Officer defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, and falsely imprisoned plaintiff's, without reasonable suspicion, probable cause or any legal justification. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, arrested, interrogated, and detained plaintiffs in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York.

PARTIES

2. Plaintiff Karina Garcia is a resident of the State of New York.

3. Plaintiff Keila Martinez is a resident of the State of New York.

4. POLICE OFFICER MARIELEN DERASMO, Shield No. 8644, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. POLICE OFFICER MARIELEN DERASMO, Shield No. 8644, is and was at all times relevant herein, assigned to the 52nd precinct.

6. POLICE OFFICER MARIELEN DERASMO, Shield No. 8644 is being sued in her individual and official capacities.

7. SERGEANT RICHARD HEWITT, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. SERGEANT RICHARD HEWITT, is and was at all times relevant herein, assigned to the 52nd precinct.

9. SERGEANT RICHARD HEWITT is being sued in his individual and official capacities.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On October 21, 2015, at approximately 1:30 p.m., plaintiffs Karina Garcia and Keila Martinez, were lawfully sitting on a park bench in the vicinity of 309 East Mosholu Parkway North, Bronx, New York, when the individually named New York City Police Officer defendants unlawfully stopped, questioned, frisked, searched, unlawfully seized, falsely arrested, and falsely imprisoned plaintiffs, without reasonable suspicion, probable cause or any legal justification.

15. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiffs had committed a crime, was about to commit a crime, or was in the process of committing a crime.

16. At no time were plaintiffs in possession of any illegal drugs, weapons, or contraband of any kind on October 21, 2015, nor did the defendant police officers have an objective reason to believe plaintiffs possessed illegal drugs, weapons, or contraband of any kind.

17. Nevertheless, the defendant police officers unlawfully handcuffed plaintiffs and falsely arrested them without legal justification or probable cause.

18. The individually named police officers unlawfully searched plaintiffs without probable cause or any legal justification and did not locate any illegal drugs weapons or contraband as a result of the search.

19. Thereafter, plaintiffs were transported to the 52nd Precinct stationhouse whereat the defendant police officers unlawfully fingerprinted and photographed them and detained them in a holding cell for many hours.

20. On October 21, 2015, after approximately 7 hours in custody, plaintiffs were given a Desk Appearance Ticket and were released.

21. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants maliciously initiated a prosecution against plaintiffs without probable cause, and were falsely charged with a crime.

22. Plaintiff Karina Garcia was forced to appear in Court on approximately three occasions before all charges were dismissed and sealed on September 21, 2016.

23. Plaintiff Keila Martinez was forced to appear in Court on approximately one occasion before all charges were dismissed and sealed on December 14, 2016.

24. Some of the police officer defendants observed the violation of plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment of plaintiffs.

25. The unlawful stop, question, frisk, search, false arrest, false imprisonment, against plaintiffs by the individually named defendants caused plaintiffs to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth Amendment and Fourteenth Amendment Rights

26. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.

27. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiffs to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

28. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

29. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

31. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

32. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

33. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

34. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

36. The conduct of defendants in stopping, frisking, and searching, plaintiffs were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

37. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

39. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

40. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The illegal approach, pursuit, stop and search inside plaintiffs' pockets, inside of the waistband of their pants and underneath their clothing employed by defendants herein terminated plaintiffs' freedom of movement through means intentionally applied.

42. Defendants lacked probable cause to search plaintiffs.

43. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Failure to Intervene

46. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The defendants that did not physically touch plaintiffs, but were present when other officers violated plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

48. Defendants failed to intervene to prevent the unlawful conduct described herein.

49. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subject to other physical constraints.

50. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

53. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs KARINA GARCIA and KEILA MARTINEZ demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 21, 2018

/s/
By: _____
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiffs
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
October 21, 2018

/s/
STUART E. JACOBS